Agreement Award

Indian-Non Judicial Stamp
Haryana Government

Date : 31/07/2024

G0312024G3617.119574344316170024DEEPAK.Agreement.Award

Certificate No. G0312024G3617

GRN No. 119574344

Stamp Duty Paid : ₹ 101
(Rs. Only)

Penalty : ₹ 0
(Rs. Zero Only)

Seller / First Party Detail

Name: Mantarav Private limited

H.No/Floor : Na Sector/Ward : Na LandMark : Na

City/Village : Na District : Na State : Na

Phone: 96******74

Buyer / Second Party Detail

Name : Customer Or Second party

H.No/Floor : Na Sector/Ward : Na LandMark : Na

City/Village: Na District : Na State : Na

Phone : 96******74

Purpose : AGREEMENT

The authenticity of this document can be verified by scanning this QrCode Through smart phone or on the website https://egrashry.nic.in

This Stamp Paper forms an integral part of the agreement bearing unique ID No. HM705AA219 , executed between Mantarav Private Limited and the Customer/Second Party.

CONFIDENTIALITY AGREEMENT

This Confidentiality Agreement ("Agreement") is entered on this 03rd day of Jan 2025 ("Effective Date")

By and Between

Girnar Software Private Limited, a company incorporated in India, under the provisions of the Companies Act, 1956, having its registered office at 21 Girnar, Dharam Singh Circle, Govind Marg, Moti Doongari Road, Jaipur, Rajasthan-302004 and corporate office at 11th Floor, Tower B, Emaar Digital Greens, Golf Course Extension Road, Sector-61, Gurugram, Haryana 122012 (hereinafter referred to as "**GSPL**" which expression shall, unless it be repugnant to the context or meaning thereof, mean and include its Affiliates, successors and assigns) of the ONE PART;

AND

Mantarav Private Limited, a company incorporated under the provisions of the Companies Act, 2013, having its corporate office at Incuspaze, 4th Floor, Plot No. 17, Phase 4, Maruti Udyog, Sector 18, Gurugram, Haryana 122 015, India (hereinafter referred to as "**Company**", which expression shall, unless it be repugnant or contrary to the context or meaning thereof, mean and include its successors and permitted assigns) of the OTHER PART.

GSPL and Company shall hereinafter jointly be referred to as "**Parties**" and individually as a "**Party**".

WHEREAS:-

A. GSPL and its Affiliates own and operate several online auto classified portals including without limitation www.cardekho.com and mobile applications thereof. GSPL and its Affiliates being an online platform merely act as a conduit/ facilitator and are inter alia also engaged in the business of providing digital marketing, lead generation, lead management, IT/ITeS services and other business auxiliary services to its clients;

B. Company is engaged in the business of conceiving & developing artificial intelligence enabled and virtual reality and augmented reality supported computer software & platforms for various industries including Automotive, Healthcare, Finance, Banking, Hospitality & retail.

C. Each Party has an interest in participating in discussions wherein either Party might share certain information with the other Party which the Disclosing Party *(as defined below)* considers to be proprietary and confidential. Accordingly, each Party has agreed to disclose, transmit and provide certain 'Confidential Information' to other Party regarding potential solutions that could mutually benefit both the parties. ("**Purpose**"). This Agreement seeks to protect the Confidential Information disclosed by Disclosing Party to the Receiving Party.

NOW THIS AGREEMENT WITNESSETH:

1. Definitions:

1.1 "**Affiliates**" means, with respect to any person, any other person directly or indirectly Controlling, Controlled by, or under direct or indirect common Control with, such person. For the purposes of this definition, a person shall be deemed to "Control" another person if such person possesses, directly or indirectly, the power to direct or cause the direction of the management or policies of such other person, whether through the ownership of voting securities, by contract or otherwise, and the terms "Controlling" and "Controlled" shall have corresponding meanings.

1.2 In this Agreement "**Confidential Information**" means any non-public or proprietary information that is furnished to Receiving Party *(as defined below)* by or on behalf of Disclosing Party (regardless of whether such Confidential Information is communicated orally or in writing, pictorially, by electronic transmission or otherwise) that is furnished to Receiving Party to Disclosing Party or its affiliates, including without limitation, relating to business plans or practices, financial or technical matters, trade secrets, designs, know-how, inventions, operations, customer information, marketing or promotion of product, and any other information received or acquired by Receiving Party from the Disclosing Party in the course of exploring the Purpose, but excludes information which:

a. is publicly available at the time of its disclosure; or

b. becomes publicly available following disclosure (other than as a result of breach of this Agreement by the Receiving Party or its representative or disclosure by any other person contrary to the terms of this Agreement); or
c. is already known to or was lawfully in the possession of the Receiving Party prior to disclosure under this Agreement (as can be demonstrated by Receiving Party's written records or other reasonable evidence); or
d. following disclosure under this Agreement, becomes available to Receiving Party (as can be demonstrated by Receiving Party's written records or other reasonable evidence) from a source other than Disclosing Party, which source is not prohibited from disclosing such information to Receiving Party by a confidentiality agreement with either Party; or
e. is or has been independently developed by the Receiving Party without using or referring to the Confidential Information.

1.3 "**Disclosing Party**" means a party including its Affiliates that discloses Confidential Information under this Agreement.

1.4 "**Receiving Party**" means a Party including its Affiliates that receives Confidential Information under this Agreement.

2. Confidentiality:

2.1 The Receiving Party agrees to regard, preserve and keep as secret and confidential all Confidential Information of the Disclosing Party. In maintaining confidentiality hereunder the Receiving Party agrees, accepts, warrants and covenants that it shall not, either on its own account or jointly with or for any other person, firm, company or any other entity:
a. disclose, transmit, reproduce or make available any such Confidential Information to any person firm, company or any other entity other than its employees and its external advisors, auditors and lawyers who need to know the same in connection with the Purpose mentioned aforesaid; or
b. use the Confidential Information for any purpose other than in connection with the Purpose mentioned hereinabove; or
c. use any such Confidential Information for its own benefit or the benefit of others or do anything prejudicial to the interests of the Disclosing Party or its clients or any member of their group or their projects.

2.2 Unless otherwise agreed in writing, neither Party shall disclose, announce or otherwise publicize the existence of its association with the other Party or the existence of the project with the other Party or any other arrangement (existing or possible) between the other Party and its clients or itself in connection with any project/ assignment.

2.3 Receiving Party also agrees, accepts and warrants that it shall:
a. use at least the same degree of care in safeguarding such Confidential Information as it uses for its own confidential information of like importance and such degree of care shall be at least that which is reasonably calculated to prevent such inadvertent disclosure; and
b. keep the Confidential Information and any copies thereof secure and in such a way so as to prevent unauthorized access by any third party; and
c. limit access to such Confidential Information to those of its personnel who are directly involved in the consideration/ evaluation of the Confidential Information and bind each of its personnel so involved to protect the Confidential Information in the manner prescribed in this Agreement; and
d. upon discovery of any disclosure or suspected disclosure of Confidential Information, to promptly inform the Disclosing Party of such disclosure in writing and, to the extent such (suspected) disclosure is caused by the Receiving Party, immediately return to the Disclosing Party all such information, in whatsoever form, including any and all copies thereof.

3. Return or destruction:

Upon the request of the Disclosing Party, the Receiving Party shall return, destroy or expunge all Confidential Information of the Disclosing Party provided to it pursuant to this Agreement; provided, however, (i) the Receiving Party shall be permitted to retain copies of the Disclosing Party's Confidential Information solely for archival, audit, disaster recovery, legal and/or regulatory purposes, and (ii) neither Party will be required to

search archived electronic back-up files of its computer systems for the other Party's Confidential Information in order to purge the other Party's Confidential Information from its archived files; provided further, that any Confidential Information so retained will remain subject to the obligations and restrictions contained in this Agreement.

4. Permitted disclosure:

The provisions of paragraph 2 shall not restrict any disclosure required by law or by any court of competent jurisdiction, or any enquiry or investigation by any governmental, official or regulatory body which is lawfully entitled to require any such disclosure provided that prior to such disclosure, the Receiving Party shall promptly notify the Disclosing Party of such requirement to enable the Disclosing Party to undertake such steps as it may deem fit.

5. Ownership of Information:

The Confidential Information and copies thereof, in whatsoever form shall at all times remain the property of the Disclosing Party or its clients and its disclosure shall not confer on the Recipient Party any rights (including any intellectual property rights) over the Confidential Information whatsoever beyond those contained in this Agreement.

6. No Obligation:

The Disclosing Party shall not be required to disclose any particular information to the Receiving Party and the disclosure of any information is entirely voluntary and is not intended to, and shall not create any contractual or other relationship or obligation of any kind beyond the terms of this Agreement. Further, nothing contained herein nor any exchange of information as contemplated hereunder, shall be construed as any Party granting or conferring upon the Receiving Party, any rights, license or authority in or to the information disclosed, transmitted, received, exchanged or otherwise. It is further agreed that Disclosing Party shall not be liable to the Receiving Party in any manner whatsoever for any decisions, obligations, costs or expenses incurred by the Receiving Party by placing reliance on the Confidential Information so disclosed, transmitted, received or exchanged. Further any disclosure, transmission, receipt or exchange of information under this Agreement shall not be construed as creating warranties/ assurances/ representations of any kind in connection with such Information or constituting or implying any representation in respect of the Information so disclosed, transmitted, received or exchanged.

7. Term

This Agreement shall be effective on and from the Effective Date and shall continue to be in full force and effect for a period of one year ("Term"), unless earlier terminated in accordance with the terms hereof.

8. No Obligation to Enter into Definitive Agreement

Parties acknowledge and agree that this Agreement does not create or constitute an agreement to consummate the transaction/ Purpose or to enter into a definitive agreement in relation thereto, and neither Party nor any of their Affiliates or representatives shall have any obligations or liability of any kind whatsoever with respect to the transaction/ Purpose, whether by virtue of this Agreement, any written or oral expression with respect hereto or otherwise, unless and until definitive agreement has been executed and delivered by the Parties. There is no obligation on either Party to enter into any transaction, and no agency or partnership relationship is created between the Parties.

9. Remedies and Relief:

The Parties hereto acknowledge that remedies at law may be inadequate to protect the Disclosing Party or its clients against any actual or threatened breach of this Agreement by the Receiving Party, and, without prejudice to any other right and remedies otherwise available to the Disclosing Party or its clients, the Disclosing Party and/or any of its affiliate(s) may seek an injunction or specific performance for any threatened or actual breach of the provisions of this Agreement by the Receiving Party.

10. No Assignment:

This Agreement shall not be assigned by either Party, without the prior written consent of the other Party. This Agreement shall inure to the benefit of and will be binding upon the Parties' respective successors in interest, heirs and assigns.

11. Survival:

Notwithstanding the expiry of termination of this Agreement the confidentiality and non-disclosure obligations set forth under this Agreement shall survive for a period of one (1) year from the date of disclosure of Confidential Information by Disclosing Party to the Receiving Party.

12. **Severability:**

In the event that any of the provisions contained in this Agreement is found to be invalid, illegal or unenforceable in any respect by a court of competent jurisdiction, the validity, legality, or enforceability of the remaining provisions contained in this Agreement will not be in any way affected or impaired by such a finding.

13. No Relationship between Parties:

Nothing in this Agreement shall be construed to constitute an agency, partnership, joint venture, or other similar relationship between the Parties.

14. Notices:

Notices as required by this Agreement shall be sent by certified or registered mail with acknowledgement due on receipt to the Parties at the below mentioned addresses or addresses as the Parties may designate from time to time, and shall be sent.

In Case of GSPL:
Att: Legal Team
11th Floor, Tower B, Emaar Digital Greens, Golf Course Extension Road, Sector-61, Gurugram, Haryana 122012
Email: grouplegal@girnarsoft.com

In Case of Company:
Att: Legal Team
Incuspaze, 4th Floor, Plot No. 17, Phase 4, Maruti Udyog, Sector 18, Gurugram, Haryana 122 015, India
Email: kushan@kushanchakraborty.com

15. Dispute Resolution & Governing Law:

Any dispute or claim arising out of or in connection with this Agreement shall be governed by, and construed in accordance with the laws of India and shall be finally settled by arbitration in pursuance of the Arbitration and Conciliation Act, 1996 (as amended from time to time). The arbitral tribunal shall comprise of a sole arbitrator who shall be appointed by mutual consent of the Parties within 30 days of receipt of notice for appointment of arbitrator from the other Party. In the event that Parties fail to appoint sole arbitrator by mutual consent within 30 days of receipt of notice for appointment of arbitrator from the other Party, the Sole Arbitrator shall be appointed in accordance with Arbitration and Conciliation Act, 1996. The place of arbitration shall be at New Delhi. The language of arbitration shall be English. The award of the arbitrator shall be final, conclusive and binding upon the Parties. The rights and obligations of the Parties under, or pursuant to, this Clause, including the arbitration agreement in this Clause, shall be under the exclusive jurisdiction of the Courts at New Delhi.

16. Entire Agreement:

This Agreement, including all annexures (if any) attached hereto, shall constitute the entire agreement amongst the Parties hereto. It shall supersede all prior or contemporaneous oral or written communications, proposals, conditions, representations and warranties and prevails over any conflicting or additional terms of any quote, order, acknowledgement or other communication between the Parties relating to its subject matter during the term of this Agreement.

IN WITNESS WHEREOF THE PARTIES HERETO HAVE CAUSED THIS AGREEMENT TO BE EXECUTED BY THEIR AUTHORIZED REPRESENTATIVES ON THIS DAY OF,

Authenticated through
Leegality.com (HM705AA219)
Onais Rafiq
Date: Fri Jan 03 10:59:05 IST 2025

Signed and delivered on behalf of
Girnar Software Private Limited
Name: Onais Rafiq

Authenticated through
Leegality.com (HM705AA219)
Rohan Bhatial
Date: Fri Jan 03 10:59:59 IST 2025

Signed and delivered on behalf of
Mantarav Private Limited
Name: Rohan Bhatial